

Benefices Measure 1972

1972 No. 3

A MEASURE passed by the General Synod of the Church of England to provide an additional ground for refusing to institute or admit a presentee to a benefice, and for purposes connected therewith.

[10th February 1972]

1.—(1) Where a clerk in Holy Orders who has not previously held a benefice or the office of vicar in a team ministry is presented to a benefice, the grounds on which the bishop may in his discretion refuse to institute or admit him to the benefice shall include the following additional ground, namely, that the presentee has had no experience or less than three years' experience as a full-time parochial minister. Additional ground for refusing to institute.

(2) Where the bishop refuses to institute or admit a presentee on the ground aforesaid, he shall signify in writing the refusal and ground thereof to the person presenting to the benefice and the presentee, and either of those persons may, within one month after the signification, appeal in writing to the archbishop of the province, who may either uphold the bishop's decision or direct him to institute or admit the presentee:

Provided that where the bishop of the diocese is an archbishop, the appeal shall lie to the archbishop of the other province.

(3) In this section—

“benefice” has the meaning assigned to it by section 89 of the Pastoral Measure 1968;

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“bishop” means the bishop of the diocese and includes, during a vacancy in a see, the guardian of the spiritualities;

“parochial minister” means an assistant curate or curate in charge licensed to a parish.

2.—(1) This Measure extends to the whole of the provinces of Canterbury and York, except the Channel Islands and the Isle of Man, but may be applied to the Channel Islands or either of them, as defined in the Channel Islands (Church Legislation) Measures 1931 and 1957, in accordance with those Measures. Extent and application.

(2) This Measure applies to benefices in the patronage of the Crown or the Duchy of Cornwall.

(3) References in section 1 of this Measure to the previous holding of a benefice or the office of vicar in a team ministry and to experience as a full-time parochial minister shall be construed as applying to any benefice or any such office and any parish in the provinces of Canterbury and York and to any benefice (or corresponding office) and any parish in the Church in Wales, the Church of Ireland or the Episcopal Church of Scotland.

Short Title.

3. This Measure may be cited as the Benefices Measure 1972.